

DOWLING v ANDERSON, et al

25CV48290

DEFENDANTS' MOTION TO STRIKE PRAYER FOR PUNITIVE DAMAGES

This matter involves allegations of personal injuries stemming from a dog bite brought by Darren Dowling ("Plaintiff") against Carol R. Anderson ("Defendant.")

Defendant now moves to strike portions of the Complaint related to punitive damages. The motion is unopposed.

I. Background

On September 15, 2025, Plaintiff filed his complaint against Defendant alleging negligence and premises liability. According to Plaintiff, Defendant owns a "large white pit bull" who left Defendant's property through an unsecured gate and attacked Plaintiff. Plaintiff suffered a bite on his calf down to the bone, as well as severe injuries to his arms and hands.

II. Legal Standard and Discussion

A motion to strike lies either to strike: (1) any "irrelevant, false or improper matter inserted in any pleading"; or (2) any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP § 436.) A motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

Punitive damages are recoverable where a plaintiff proves "by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294.) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of rights or safety of others. (*Ibid.*)

Here there are no factual allegations of intentional or despicable conduct on the part of Defendant. Accordingly, the motion to strike punitive damages is **GRANTED, with 15 (fifteen) days leave to amend.**

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.